

COVENANT NOT TO COMPETE AND NON-DISCLOSURE AGREEMENT

PARTIES:

_____ (“Signer”)

Administración de Call Centers, S.A. a company incorporated in Panama, and its parent, divisions, subsidiaries and affiliates (“Allied Global” or the “Company”, and together with Developer, the “Parties”)

DATE: _____

RECITALS:

A. This Covenant Not to Compete and Non-Disclosure Agreement (the “Agreement”) is executed upon Developer’s bona fide advancement with ALLIED GLOBAL and is a condition of such advancement and is effective as of _____. Developer acknowledges that he was informed in a written job offer at least two weeks before starting work in his new position that this Covenant Not to Compete and Non-Disclosure Agreement is required and is a condition of advancement.

B. Over the course of Developer’s contract with ALLIED GLOBAL, Developer will be or has been exposed to and is in a position to develop confidential information particular to ALLIED GLOBAL’s business and not generally known to the public as defined below (“Protected Information”). It is anticipated that Developer will continue to be exposed to Protected Information of greater sensitivity, and this Agreement will remain in effect until Developer leaves the Company or it is superseded by a new written agreement executed by the Parties.

C. The nature of ALLIED GLOBAL’s business is highly competitive and disclosure of any Protected Information would result in severe damage to ALLIED GLOBAL and be difficult to measure.

D. ALLIED GLOBAL makes use of its Protected Information throughout the world. Protected Information of ALLIED GLOBAL can be used to ALLIED GLOBAL’s detriment anywhere in the world.

AGREEMENT:

In consideration of the foregoing, and the terms and conditions set forth below, the Parties agree as follows:

1. Covenant Not to Compete.

1.1 Competition Restriction. During Developer’s contract by ALLIED GLOBAL, under the terms of any offer letter, contract or otherwise, and for one (1) year thereafter (the “Restriction Period”),

Developer will not directly or indirectly own, manage, control, or participate in the ownership, management or control of, or be employed by, consult for, or be connected in any manner with, any business engaged anywhere in the world that directly competes with ALLIED GLOBAL or any of its parent, subsidiary or affiliated corporations or clients ("Competitor"), Under the NDA, the developer is not allowed to work concurrently and or simultaneously with any competitor. This provision is subject to ALLIED GLOBAL's option to waive all or any portion of the Restriction Period as more specifically provided below.

1.2 Extension of Time. In the event that Developer breaches this covenant not to compete, the Restriction Period shall automatically toll from the date of the first breach, and all subsequent breaches, until the resolution of the breach through private settlement, judicial or other action, including all appeals. The Restriction Period shall continue upon the effective date of any such settlement, judicial or other resolution. ALLIED GLOBAL shall not be obligated to pay Developer the additional compensation described in the contract for any period of time in which this Agreement is tolled due to Developer's breach. In the event Developer receives such additional compensation for any such breach, Developer shall immediately reimburse ALLIED GLOBAL in the amount of all such compensation upon the receipt of a written request by ALLIED GLOBAL.

1.3 Waiver of Non-Compete. ALLIED GLOBAL has the option, in its sole discretion, to elect to waive all or a portion of the Restriction Period or to limit the definition of Competitor by giving Developer seven (7) days' prior written notice of such election; provided, however, unless Developer is terminated for Cause (as defined below), any waiver of the Restriction Period must be with the consent of Developer. In the event all or a portion of the Restriction Period is waived or the definition of Competitor is limited, ALLIED GLOBAL shall not be obligated to pay Developer for any period of time as to which the covenant not to compete has been waived.

1.4 Definition of "Cause". For purposes of this Agreement, the Company will have "Cause" to terminate Developer's contract upon Developer's:

- a) conviction or plea of guilty or no contest to (i) any felony or (ii) a misdemeanor charge involving fraud, false statements or misleading omissions, wrongful taking, embezzlement, bribery, forgery, counterfeiting or extortion;
- b) willful conduct that is or may reasonably be expected to cause material financial or reputational harm to the Company (regardless of whether such conduct occurred during or prior to Developer's contract with the Company);
- c) continued failure to substantially perform Developer's duties that Developer fails to remedy to the reasonable satisfaction of the Company within thirty (30) days after written notice is delivered by the Company to Developer that sets forth in reasonable detail the basis of Developer's failure to substantially perform Developer's duties;
- d) violation of the Company's material policies (including, but not limited to, the Company's policies pertaining to non-discrimination, anti-harassment and insider trading): (i) obstruction, (ii) attempts to influence, obstruct or impede or (iii) failure to materially cooperate with an investigation authorized by the Board of Directors of the Company (the "Board"), a self regulatory organization empowered with self-regulatory responsibilities under federal or state laws or a governmental department or agency (an "Investigation"); or
- e) willful withholding, removal, concealment, destruction, alteration or falsification of any material which is requested in connection with an Investigation or attempt to do so or solicitation of another to do so.

2. Non-Disclosure Agreement.

2.1 Protectable Information Defined. “Protected Information” shall mean all proprietary information, in whatever form and format, of ALLIED GLOBAL and all information provided to ALLIED GLOBAL by third parties that ALLIED GLOBAL is obligated to keep confidential. Developer agrees that any and all information to which Developer has access concerning ALLIED GLOBAL projects and internal ALLIED GLOBAL information is Protected Information, whether in verbal form, machine-readable form, written or other tangible form, and whether designated as confidential or unmarked. Without limiting the foregoing, Protected Information includes trade secrets and competitively sensitive business or professional information (regardless of whether such information constitutes a trade secret) relating to ALLIED GLOBAL’s research and development activities, its intellectual property and the filing or pendency of patent applications, trade secrets, confidential techniques, methods, styles, designs, design concepts and ideas, customer and vendor lists, contract factory lists, pricing information, manufacturing plans, business and marketing plans or strategy, product development plans, product launch plans, financial information, sales information, methods of operation, manufacturing processes and methods, products, and personnel information.

2.2 Excluded Information. Notwithstanding paragraph 3.1, Protected Information excludes any information that is or becomes part of the public domain through no act or failure to act on the part of the Developer. Specifically, Developer shall be permitted to retain as part of his personal portfolio copies of Developer’s original artwork and designs, provided the artwork or designs have become part of the public domain. In any dispute between the Parties with respect to this exclusion, the burden of proof shall be on Developer and such proof will be by clear and convincing evidence.

2.3 Developer’s Obligations. During the period of contract by ALLIED GLOBAL and for a period of two (2) years thereafter, Developer shall hold in confidence and protect all Protected Information and shall not, at any time, directly or indirectly, use any Protected Information for any purpose outside the scope of Developer’s contract with ALLIED GLOBAL or disclose any Protected Information to any third person or organization without the prior written consent of ALLIED GLOBAL. Specifically, but not by way of limitation, Developer shall not ever copy, transmit, reproduce, summarize, quote, publish or make any commercial or other use whatsoever of any Protected Information without the prior written consent of ALLIED GLOBAL. Developer shall also take reasonable security precautions and such other actions as may be necessary to ensure that there is no use or disclosure, intentional or inadvertent, of Protected Information in violation of this Agreement.

3. Return of Protected Information. At the request of ALLIED GLOBAL at any time, and in any event, upon termination of contract, Developer shall immediately return to ALLIED GLOBAL all Protected Information in whatever form, including tapes, notebooks, drawings, digital files or other media containing Protected Information, and all copies thereof, then in Developer’s possession or under Developer’s control.

4. Unauthorized Use. During the period of contract with ALLIED GLOBAL and thereafter, Developer shall notify ALLIED GLOBAL immediately if Developer becomes aware of the unauthorized possession, use or knowledge of any Protected Information by any person employed or not employed by ALLIED GLOBAL at the time of such possession, use or knowledge. Developer shall cooperate with ALLIED GLOBAL in the

investigation of any such incident and will cooperate with ALLIED GLOBAL in any litigation with third parties deemed necessary by ALLIED GLOBAL to protect the Protected Information.

5. Non-Recruitment. During the term of this Agreement and for a period of one (1) year thereafter, Developer shall not directly or indirectly solicit, divert or hire away (or attempt to solicit, divert or hire away) to or for himself or any other company or business organization, any ALLIED GLOBAL Developer, whether or not such Developer is a full-time Developer or temporary Developer and whether or not such contract is pursuant to a written agreement or is at will or any independent contractor working for ALLIED GLOBAL.

6. Accounting of Profits and penalty fee. Developer agrees that, if Developer should violate any term of this Agreement, ALLIED GLOBAL shall be entitled to an accounting and repayment of all profits, compensation, commissions, remuneration or benefits that Developer directly or indirectly has realized and/or may realize as a result of or in connection with any such violation and agrees to pay a penalty fee corresponding to twenty thousand United States Dollars (US\$20,000.00). Such remedy shall be in addition to and not in limitation of any injunctive relief or other rights or remedies to which ALLIED GLOBAL may be entitled at law or in equity.

7. General Provisions.

7.1 Survival. This Agreement shall continue in effect after the termination of Developer's contract, regardless of the reason for termination.

7.2 Waiver. No waiver, amendment, modification or cancellation of any term or condition of this Agreement shall be effective unless executed in writing by both Parties. No written waiver shall excuse the performance of any act other than the act or acts specifically referred to therein.

7.3 Severability. Each provision herein shall be treated as a separate and independent clause and unenforceability of any one clause shall in no way impact the enforceability of any other clause. Should any of the provisions in this Agreement be found to be unreasonable or invalid by a court of competent jurisdiction, such provision shall be enforceable to the maximum extent enforceable by the law of that jurisdiction.

7.4 Applicable Law and Jurisdiction. This Agreement, and Developer's contract hereunder, shall be construed according to the laws of the State of Miami. Developer further hereby submits to the jurisdiction of and agrees that exclusive jurisdiction over and venue for any action or proceeding arising out of or relating to this Agreement shall lie in the state and federal courts located in Miami.

Signer

By (signature): _____

Name: _____

ALLIED GLOBAL

By: _____

Name: German Estuardo Lopez del Cid

Title: Power of attorney